Superior Court of the State of California
County of Orange

DEPT C18 TENTATIVE RULINGS

Judge Theodore R. Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5218. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C18 Link to begin the remote online check in/Zoom appearance process:

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Date: September 28, 2023

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1.	Pitman v. General Motors LLC 22-1277422	The Motion to Compel Further Responses, etc., filed on 5/22/23 by Plaintiff Brian Pitman ("Plaintiff") as to Plaintiff's Form Interrogatories, Set One (the "FROGs"), is GRANTED for FROG Nos. 1.1, 15.1, and 17.1 as directed to RFA 14, as the responses at issue were plainly incomplete. The Motion is **DENIED** as to FROG 2.8, as Plaintiff has not shown why the response is insufficient given the context here. Defendant General Motors, LLC ("GM") is to provide verified supplemental responses for FROG Nos. 1.1, 15.1, and 17.1 within 20 days after service of notice of this ruling. It also appears that no verification was provided for the responses at issue [none is presented with the Motion, and the Opposition argues about the content thereof, but also without attaching a copy]; if so, GM is also to provide that verification within 20 days after service of notice of this ruling. *Counsel for Plaintiff is to give notice.*
2.	Alimadadian v. M3Live Bar & Grill, Inc. 15-822570	Before the Court at present is a Motion to Tax Costs, filed by Judgment Debtors Musa Madain and The Grand Theater, Inc. (here as moving parties, "MPs") filed on 5/19/23 and amended on 8/24/23, which seeks to tax costs claimed in the Memorandum of Costs After Judgment ("MOCAJ") as filed on 5/9/23. The Motion is **GRANTED IN PART**. The Motion argues that the sum sought for fees in the MOCAJ includes sums that were already claimed in an earlier MOCAJ. The MOCAJ currently at issue does seem to do so, as it purports to claim attorney's fees in the amount of $125,490 for the period between March 2022 and April 2023 – which would overlap with the prior fee claim. (ROA 433; ROA 255.) However, the Opposition clarifies that what is actually sought in the current MOCAJ is $52,830 in new fees for the period between December 2022 and April 2023, so there is no overlap. (Hashemi Decl. at ROA 565, ¶ 7.) To the extent that the MOCAJ at issue appears to claim any new attorney's fees beyond that sum, the Motion is **GRANTED**. However, the balance of the arguments made in the Motion have not been shown to have merit and are therefore **DENIED**. The sum at issue has been timely claimed here in accordance with *C.C.P. § 685.070(a)(6)* and *C.C.P. § 685.040*. With regard to the sum claimed for new fees, the number of hours spent on post-collection efforts is adequately supported, and the time appears to have been reasonably

		incurred for the services rendered during that period. Although the hourly rate claimed here is substantial for a collection matter, it does not seem unreasonable in the context of this case. The Court thus finds that the $52,830 sum claimed for fees incurred between December 2022 and April 2023 is reasonable in context here. The total post-judgment fees which Plaintiff may recover, up through the end of April 2023, will thus be $125,490 (for the $72,660 sum already included per the prior MOCAJ, and an additional $52,830 here). *Counsel for MPs is to give notice of this ruling*.
3.	Ricks v. Wine Cellar Designers Group, LLC 22-1274692	The unopposed demurrer by defendant Wine Cellar Designers Group, LLC to the complaint filed by plaintiff Tyler Ricks is **OVERRULED**. The Court notes that although there is no POS attached to the Demurrer, it was apparently served on the plaintiff as his counsel discusses it in his 7/3/23 Status Report to the Court. The Court therefore rules on the merits of the Demurrer as follows. The role of a Demurrer is "to test the legal sufficiency of a complaint." (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994, citations omitted.) In ruling on the demurrer, the court "treats the Demurrer as admitting all material facts properly pleaded." "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co., Inc. v. Stewart Title Guar. Co*. (1998) 19 Cal.4th 26, 38.) Here, defendant argues that it was not plaintiff's employer and that the causes of action therefore fail. These facts contradict the allegations in the complaint which are that plaintiff was employed by Wine Cellar Designers Group, LLC. Accordingly, the Demurrer is **OVERRULED**. Defendant to answer within 20 days. *Counsel for moving party is ordered to give notice of this ruling.*
4.	Western Overseas Corporation v. Seaways Shipping and Logistics Limited 23-1314361	The unopposed Motion to be Relieved as Counsel of Record, filed by Jessie Gessin and Gessin Ltd. as to representation of defendant Seaways Shipping and Logistics Limited is **GRANTED**. The Court will add the 10/27/23 CMC to Para. 8 of the proposed Order and the Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. *Moving counsel is ordered to give notice of this ruling*

5.	Emery v. Marovic 22-1267207	*(Off calendar)*
6.	Ngo v. Hanh Phouc Enterprises, Inc. 21-1233241	Before the Court are two motions. The first motion is by Attorney Jon McGrath to be relieved as counsel for defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen ("Defendants"). That motion is DENIED. The second motion is by defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen to continue trial. That motion is GRANTED as set forth herein. **MOTION TO BE RELIEVED AS COUNSEL** Jon McGrath seeks to be relieved as counsel for the Defendants because they have not paid his fees as required under the retainer agreement. *Rule of Court 3.1326* sets forth the mandatory requirements for this motion. Mr. McGrath failed to comply with Rule *3.1362(c), (d)* and *(e).* Mr. McGrath did not use the mandatory declaration form, MC-052, required by *3.1362(c).* Instead, he prepared his own declaration where he described at length how the clients had not been paying him and how he had financial difficulty but the declaration he submitted did not cover the topics in the mandatory Form MC-052. Mr. McGrath did not comply with the service requirements set forth in *3.1362(d).* There is no declaration stating that the clients' address had been confirmed within 30 days. Also, the Court notes that there are inconsistencies regarding the address of the defendants. There is a POS attached to the motion which shows that the two clients were served by mail at 624 Manchester Ave., Los Angeles, CA 90001. However, there is reference in Exhibit 2 to the defendants having a different address. Mr. McGrath also did not comply with *Rule 3.1362(e)* which requires a that a "proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers." Accordingly, for the foregoing reasons, the motion by Jon McGrath to be relieved as counsel is **DENIED**. **MOTION TO CONTINUE TRIAL** *CRC 3.1332(c)* states that "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." "A motion for continuance is

		addressed to the sound discretion of the trial court." (*Oliveros v. County of Los Angeles* (2004) 120 Cal. App. 4th 1389, 1395.) This motion is made on the eve of trial after the case has been pending nearly two years. Defendants argue that good cause exists to continue the trial because if the motion to be relieved as counsel is granted, "defendants will require time to find other counsel to represent them." (Motion at 3:10-11) There is no other basis for the motion such as the unavailability of a witness or party or an excused inability to obtain essential evidence. The Court notes that the motion to be relieved is based on Mr. McGrath's assertion that he has not been paid for his services. He states that the defendants' failure to pay goes back to before the October 2022 mediation. As the plaintiff points out in her opposition, Mr. McGrath has not been diligent in bringing the subject motion. Mr. McGrath states in his declaration that he has been busy these past two years working on a new business he is attempting to start. However, this is not a legitimate basis for delaying the filing of the subject motions. Accordingly, the motion to continue trial is **DENIED**. The Mandatory Settlement Conference will remain as scheduled for October 6, 2023 at 8:30 a.m. The parties are ordered to comply with Rule 3.1380 in advance of the MSC. Additionally, the Court notes that on 4/19/23, Plaintiff filed an amendment to the complaint naming Phat Phan as DOE 1. There is no POS, default or answer on file. The Court sets an Order to Show Cause re Failure to Serve or Dismiss Defendant Phat Phan for October 13, 2023 at 9:00 a.m. in this Department. *Jon McGrath is ordered to give notice of these rulings*.
7.	Sommers v. Walker 23-1309183	*(Off calendar)*
8.	Fidelity Tax Relief LLC v. AdBoom LLC 20-1149130	Defendant Nick Kohlschreiber's ("Kohlschreiber") Demurrer to plaintiff Fidelity Tax Relief LLC's ("Plaintiff") First Amended Complaint ("FAC") is **OVERRULED**. A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The issue is the sufficiency of the pleading, not the truth of the facts alleged. Thus, no matter how unlikely or improbable, the allegations made must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corporation v. Structural Materials Co*. (1981) 123

Cal.App.3d 593, 604.) Absent court orders or other items subject to judicial notice, or items attached as exhibits to the complaint, the court may not consider the contents of pleadings or other exhibits when ruling on a demurrer. (*Day v. Sharp* (1975) 50 Cal.3d 904, 914; *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1746, 1749.)

"In our examination of the complaint we are guided by the well settled principles governing the testing of its sufficiency by demurrer: A demurrer admits all material and issuable facts properly pleaded. [Citations omitted.] However, it does not admit contentions, deductions or conclusions of fact or law alleged therein. [Citations omitted.]" (*Daar v. Yellow Cab Co*. (1967) 67 Cal.2d 666, 672.)

Kohlschreiber demurs to causes of action ("COA") Nos. 1 – 8 on the basis that they fail to state sufficient facts to constitute a COA against Kohlschreiber (*Code Civ. Proc. § 430.10(e)*), and they are ambiguous and unintelligible as pled. (*Code Civ. Proc. § 430.10(f)*.) Kohlschreiber only based his demurrer upon 1) Kohlschreiber allegedly not being a party to the contract and the personal guaranty allegation being conclusory; 2) the alter ego allegations being conclusory; 3) the Economic Loss Rule barring to COA Nos. 3 – 5; and 4) unjust enrichment not being an independent COA. Kohlschreiber made no specific arguments as to the lack of sufficient facts or ambiguity/ unintelligibleness of any specific COA. The court also notes Kohlschreiber made a new argument as to COA No. 7 – Violation of *Penal Code Section 496* in the reply brief that was not in the original demurrer without providing any good cause as to why it was not included originally, which will not be considered. (*In re Marriage of Khera & Sameer* (2012) 206 Cal. App. 4th 1467, 1478.)

1) Kohlschreiber Being a Party to Contract is a Question of Fact

Kohlschreiber argues he was not a party to the Contract and therefore Plaintiff improperly seeks to hold Kohlschreiber personally liable for the rent and allegedly stolen/missing equipment ("Equipment") in excess of $92,802. Kohlschreiber argues there is no language in the Contract that remotely resembles a personal guarantee. This is not correct as Contract § 1.9 does contain guarantor language:

> "**1.9 Guarantor**. The obligations of the Sublessee under this Sublease shall be guaranteed by Nick." (Contract at p. 2.)

Nick Kohlschreiber is alleged to have signed the Contract on behalf of AdBoom as its managing partner. (FAC ¶ 3.) "A director, officer or other agent, signing a corporate contract containing a promise in the proper form for an individual, is not relieved from personal liability by the addition to his name of terms such as 'director,' 'president' or the like. These terms are regarded merely as *descriptio personae*, that is, a term descriptive of the person rather than the relationship in which he signs the agreement." (*Sebastian Int'l, Inc. v. Peck* (1987) 195 Cal. App. 3d 803, 808.)

Although the name listed in the Guarantor section is only "Nick" and not "Nick Kohlschreiber," or some other form, whether or not the guarantor section applies to Kohlschreiber, is an issue of fact that cannot be determined on demurrer. Again, a demurrer only tests the legal sufficiency of the complaint and documents attached thereto or judicially noticed. The FAC itself has sufficiently pled Kohlschreiber guaranteed the Contract. The Contract was signed by Kohlschreiber and contains a guarantor section indicating "Nick" guaranteed the Contract. Whether 1) the "Nick" identified is Kohlschreiber or some other individual; 2) the guarantor section is valid to bind Kohlschreiber to the Contract; and 3) Kohlschreiber signed solely in his capacity as "managing partner" or in his individual capacity, are all issues of fact that must be left to the trier of fact.

This supports sufficient facts to push this matter beyond the demurrer stage.

This issue does not support sustaining the demurrer.

2) Alter Ego Allegations Are Insufficient to Transfer Liability from AdBoom to Kohlschreiber, But Are Not Sufficient to Support a Demurrer as to Kohlschreiber's Independent Actions

Kohlschreiber argues the alter ego allegations are conclusory statements without any factual support and are therefore not enough for a claim for substantive relief.

> "Whether a party is liable under an alter-ego theory is normally a question of fact. [Citations.] "The conditions under which the corporate entity may be disregarded, or the corporation be regarded as the alter ego of the stockholders, necessarily vary according to the circumstances in each case inasmuch as the doctrine is essentially an equitable one and for that reason is particularly within the province of the trial court." [Citation.] Nevertheless, it is generally stated that in order to

prevail on an alter-ego theory, the plaintiff must show that "(1) there is such a unity of interest that the separate personalities of the corporations no longer exist; and (2) inequitable results will follow if the corporate separateness is respected." (*Zoran Corp. v. Chen* (2010) 185 Cal. App. 4th 799, 811 ("*Zoran*").)

The alter ego test encompasses a host of factors, all or many of which were laid out in *Zoran*. (*Id*., at 811-12.)

The alter ego allegations in the FAC are laid out in FAC ¶¶ 7 and 19. Plaintiff failed to allege any of the over 30 potential factors laid out in *Zoran*. The allegations as pled in the FAC do not support liability on the part of Kohlschreiber for any actions of defendant AdBoom LLC ("AdBoom").

However, the allegations in the FAC do support Kohlschreiber's independent liability for any acts Kohlschreiber may have personally performed under the respective COA. This includes potential liability under the guarantor clause of the Contract. A guarantor is, "[s]omeone who makes a guaranty or gives security for a debt." (GUARANTOR, *Black's Law Dictionary* (11th ed. 2019).) A guarantor does not have to be an alter ego, employee, or owner of a corporation to provide a guaranty, they simply have to be an individual or entity that makes a promise to pay debt when the principal debtor is in default.

While Plaintiff would need to beef up its alter ego allegations under *Zoran* in order to try to hold Kohlschreiber liable for AdBoom's actions, the FAC also contains allegations of Kohlschreiber's independent liability.

The insufficient alter ego allegations do not support sustaining the demurrer.

3) Economic Loss Doctrine Does Not Support Sustaining The Demurrer

"A person may not ordinarily recover in tort for the breach of duties that merely restate contractual obligations. Instead, " '[c]ourts will generally enforce the breach of a contractual promise through contract law, except when the actions that constitute the breach violate a social policy that merits the imposition of tort remedies.' " ' " (*Aas v. Superior Ct*. (2000) 24 Cal. 4th 627, 643.)

"Economic loss consists of " ' " 'damages for inadequate value, costs of repair and replacement of the defective product or *consequent loss of profits*—without any claim of personal injury or damages to other property....' " ' [Citation.]" [Citation.] Simply stated, the economic loss rule provides: " ' "[W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses." ' This doctrine hinges on a distinction drawn between transactions involving the sale of goods for commercial purposes where economic expectations are protected by commercial and contract law, and those involving the sale of defective products to individual consumers who are injured in a manner which has traditionally been remedied by resort to the law of torts." [Citation.] The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise. [Citation.] Quite simply, the economic loss rule "prevent[s] the law of contract and the law of tort from dissolving one into the other." (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal. 4th 979, 988.)

Kohlschreiber argues the economic loss doctrine bars COA Nos. 3 (Conversion), 4 (Intentional Misrepresentation), and 5 (Negligent Misrepresentation), as Plaintiff's alleged damages for loss of rent and for the loss of the Equipment are based upon contract. As noted, Kohlschreiber argues he cannot be held liable under the terms of the Contract as he only signed on behalf of AdBoom. However, Kohlschreiber now essentially argues that he cannot be held liable for the conversion of the Equipment as that is covered under the Contract, which Kohlschreiber is not a part of. To the extent that Kohlschreiber cannot be found liable under the Contract, he could in theory be found liable in the intentional conversion of the Equipment. Plaintiff is permitted to allege alternative theories of liability against a defendant. "When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations." (*Mendoza v. Cont'l Sales Co.* (2006) 140 Cal. App. 4th 1395, 1402.)

To the extent that Kohlschreiber may not be liable under the breach of contract allegations, Plaintiff can seek alternative theories of liability.

This economic loss doctrine does not support sustaining the demurrer.

4) COA No. 2 – Unjust Enrichment and Restitution

		"[T]he elements for a claim of unjust enrichment: receipt of a benefit and unjust retention of the benefit at the expense of another." (*Lectrodryer v. SeoulBank* (2000) 77 Cal. App. 4th 723, 726.) Kohlschreiber argues there is no COA for unjust enrichment in California and that as Plaintiff allegedly failed to state sufficient facts Kohlschreiber was a party to the Contract, that Plaintiff is not entitled to restitution from Kohlschreiber. "Unjust enrichment is not a cause of action, however, or even a remedy, but rather ' " 'a general principle, underlying various legal doctrines and remedies' ".... [Citation.] It is synonymous with restitution.' " [Citation.] Like the trial court, we will construe the cause of action as a quasi-contract claim seeking restitution. [¶] "[A]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter." " [Citation.] However, "restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason." " [Citation.] Thus, a party to an express contract can assert a claim for restitution based on unjust enrichment by "alleg[ing in that cause of action] that the express contract is void or was rescinded." " [Citation.] A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement." (*Rutherford, supra*, 223 Cal. App. 4th at 231.) Other courts (including the Fourth District, Division 3) have found unjust enrichment to be a valid claim. (*Peterson v. Cellco P'ship* (2008) 164 Cal. App. 4th 1583, 1593; *W. Pac. R. Corp. v. W. Pac. R. Co.* (1953) 345 U.S. 247, 276 ["California certainly recognizes a cause of action based on unjust enrichment, whether it be treated as a common count [Citation], or as a waiver of a tort and suit in assumpsit."] (As noted in the dissent.)) Additionally, the Ninth Circuit in analyzing California law held that while "there is not a standalone cause of action for unjust enrichment, which is synonymous with restitution ... [w]hen a plaintiff alleges unjust enrichment, a court may construe the cause of action as a quasi-contract claim seeking restitution." (*Astiana v. Hain Celestial Grp., Inc.,* 783 F.3d 753, 762 (9th Cir. 2015) (citation and quotation marks omitted). The Ninth Circuit also instructed that such a claim should not be dismissed as duplicative or superfluous of other claims because a

		party may set out alternative claims for relief. (*Id*. (citing Fed.R.Civ.P. 8(d)(2)). Accordingly, the Ninth Circuit found the allegation that the defendant had enticed plaintiffs "to purchase their products through false and misleading labeling, and that [defendant] was unjustly enriched as a result," was "sufficient to state a quasi-contract cause of action." (*Id*.)" (*Loop AI Labs Inc v. Gatti,* No. 15-CV-00798-HSG, 2015 WL 5158639, at *6 (N.D. Cal. Sept. 2, 2015).) As noted, Plaintiff has pled sufficient facts to support Kohlschreiber potentially being the guarantor to the Contract. As such, Plaintiff could seek restitution from Kohlschreiber under the terms of the Contract. However, to the extent that Kohlschreiber is not found to be a party to the Contract, Plaintiff could still seek unjust enrichment and restitution of the allegedly stolen Equipment against Kohlschreiber under a quasi-contract. This issue does not support sustaining the demurrer. As none of Kohlschreiber's arguments support sustaining the demurrer, the demurrer is **OVERRULED**. *Kohlschreiber to give notice*.
9.	Diaz v. W.E. O'Neil Construction of CA 23-1303195	The demurrer to the First Amended Complaint ("FAC") of Plaintiff, Plutarco Diaz ("Plaintiff") filed by Defendant, Guy Yocom Construction, Inc. ("Defendant") is **OVERRULED**. Defendant contends the causes of action for negligence and premises liability in the FAC are barred by the California Supreme Court decision in *Privette v. Superior Court* (1993) 5 Cal.4th 689 and its progeny. The *Privette* doctrine bars employees of independent contractors from recovering damages from the hirer of the contractor for workplace injuries. (*SeaBright Ins. Co. v. US Airways, Inc*. (2011) 52 Cal.4th 590, 594.) An exception to the *Privette* doctrine was set forth in *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and is based on the concept of negligent exercise of retained control. "[A] hirer of an independent contractor is not liable to an employee of the contractor merely because the hirer retained control over safety conditions at a worksite, but ... a hirer is liable to an employee of a contractor insofar as a hirer's exercise of retained control affirmatively contributed to the employee's injuries." (*Hooker*, 27 Cal.4th at 202.) "Affirmative contribution occurs where a general contractor is actively involved in, or asserts control over, the manner of performance of the contracted work.

		[Citation.] Such an assertion of control occurs, for example, when the principal employer *directs* that the contracted work be done by use of a certain mode or otherwise interferes with the means and methods by which the work is to be accomplished. [Citation.] [Citation.]" (*Millard v. Biosources, Inc.* (2007) 156 Cal.App.4th 1338, 1348.) (Emphasis in original; internal quotations omitted.) The Court finds the allegations in the FAC are sufficient at the pleading stage to demonstrate Plaintiff's claims fall within the *Hooker* exception to the *Privette* doctrine. The allegations are sufficient to demonstrate that Defendant retained a sufficient degree of authority over Four Star's work and that Defendant exercised that control in a manner that affirmatively contributed to Plaintiff's injury. (FAC, ¶¶ 11-12.) Accordingly, as alleged, Plaintiff's claims in the FAC do not appear barred by the *Privette* doctrine and the demurrer is thus **OVERRULED**. Defendant is to file and serve an answer to the FAC within 10 days. *Counsel for Plaintiff is to give notice.*
10.	Greencorn v. Ayres Hotel Anaheim 22-1275741	The unopposed demurrer to the complaint of Plaintiff, Joshua Greencorn ("Plaintiff") filed by Defendant, Ayres Hotel Company, Inc. ("Defendant") is **SUSTAINED** with 20 days leave to amend. **<u>First Cause of Action – Battery</u>**: Defendant is correct that Plaintiff fails to plead facts to show Defendant touched Plaintiff, or caused Plaintiff to be touched, with the intent to harm or offend Plaintiff. (*So v. Shin* (2013) 212 Cal.App.4th 652, 669 [elements of battery].) It is unclear from the Complaint how Defendant made harmful or offensive contact with Plaintiff's person. The demurrer to the first cause of action is thus **SUSTAINED** with 20 days leave to amend. **<u>Third Cause of Action – IIED</u>**: Plaintiff fails to plead extreme and outrageous conduct directed at Plaintiff. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903; *Chang v. Lederman* (2009) 172 Cal.App.4th 67, 86.) The allegations that Defendant failed to properly clean and maintain the hotel room and failed to notify Plaintiff of the presence of bed bugs do not show that Defendant acted intentionally to harm Plaintiff or engaged in conduct especially calculated to cause harm to Plaintiff, nor do

		Defendant’s acts amount to conduct that is so outrageous that it would exceed all bounds usually tolerated in a civilized community. Plaintiff also fails to adequately plead severe or extreme emotional distress. The demurrer is therefore **SUSTAINED** with 20 days leave to amend. **<u>Fourth Cause of Action – Fraudulent Concealment</u>**: “[T]he requirement that fraud must be pleaded with specificity applies equally to a cause of action for fraud and deceit based on concealment.” (*Cansino v. Bank of Am*. (2014) 224 Cal.App.4th 1462, 1472.) “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co*. (1991) 2 Cal.App.4th 153, 157.) Defendant is correct that the Complaint fails to plead the fraud claim with the requisite specificity. There are no facts showing who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. Thus, the demurrer is **SUSTAINED** with 20 days leave to amend. **<u>Fifth Cause of Action – Private Nuisance</u>**: “[A] plaintiff bringing a cause of action for private nuisance must show harm to a property interest.” (*Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 402.) Here, Plaintiff alleges the bed bug infestation “interfered substantially with Plaintiff’s use and comfortable enjoyment of Plaintiff’s Subject Hotel room.” (Complaint ¶ 83.) Defendant’s argument that Plaintiff’s private nuisance claim fails because Plaintiff does not hold a property interest in Defendant’s hotel has merit. The Complaint alleges Plaintiff stayed at Defendant’s hotel for only two nights. (Complaint ¶¶ 14,16.) Plaintiff fails to show how he can allege a property interest in Defendant’s hotel under these circumstances. As such, the demurrer is **SUSTAINED** with 20 days leave to amend. **<u>Sixth Cause of Action – Public Nuisance:</u>** A private plaintiff may bring a cause of action for public nuisance if the nuisance is “specially injurious” to the plaintiff. (*Civ. Code, § 3493*.) Defendant is correct that this claim fails because Plaintiff fails to adequately plead a special injury to Plaintiff different in kind from the general public.

		Accordingly, the demurrer is **SUSTAINED** with 20 days leave to amend. **<u>Seventh Cause of Action – Breach of Contract</u>**: The Complaint fails to plead facts demonstrating that Defendant breached any specific term of the written contract. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811 [elements of breach of contract].) The allegation that the contract "requires the room to be maintained in a sanitary, clean, and habitable condition," does not specify any particular contract term that was breached. Accordingly, the demurrer is **SUSTAINED** with 20 days leave to amend. Furthermore, as to all causes of action, Plaintiff failed to oppose the demurrer and has therefore implicitly conceded the Demurrer's merit. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) *Counsel for Defendant is to give notice.*
11.	Von Dehn v. The Lawyers Group, Inc. 20-1153544	The Motion for Summary Judgment filed by Defendants The Lawyers Group, Inc. and Lawrence Levy on 3/10/23 is **GRANTED**. As a preliminary matter there are a large number of objections on both sides. As to Plaintiff's objections to the Carlson declaration and the Shapiro declaration, the objections are **OVERRULED**. As to Defendants' objections to Plaintiff's Declaration, the objections to ¶¶ 6-8, 13-15, and 19 are **SUSTAINED**. The rest are **OVERRULED.** As to the Jacobson Declaration, objections to ¶¶ 7b, 7f, and 9 are **SUSTAINED.** The remainder are overruled. This action concerns a single cause of action for professional negligence. "The elements of a cause of action for legal malpractice are (1) the existence of an attorney-client relationship or other basis for duty; (2) a negligent act or omission; (3) causation; and (4) damages." (*Kurinij v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 863.) "'Proof of legal malpractice requires proof not only of negligence by the lawyer but also of causation, a trial within a trial to establish that, but for the lawyer's negligence, the client would have prevailed in the underlying action.' " (*Id*. at p. 864, internal citations omitted.) Plaintiff must prove that but for the negligence of the attorney, a better result would have been obtained and she "must prove what that better outcome would have been." (*Marshak v. Ballesteros* (1999) 72 Cal.App.4 1h 1514, 1518.)

		It is undisputed that Plaintiff retained Defendants The Lawyers Group, Inc. around July 11, 2014 to represent her in the underlying action, a slip-and-fall case concerning Costco. (Undisputed Material Facts of Defendants The Lawyers Group, Inc. and Lawrence Levy ("UMF") 2.) Defendants Law Offices of Murphy & Eftekhari associated in as co-counsel. (UMF 3.) It is undisputed that Plaintiff prevailed at trial, with an award of $44,703.06 in past economic loss, $21,017.77 in future economic loss, and $30,000 for noneconomic loss, as well as $8,065 in costs. (UMF 11.) Plaintiff's attorneys filed a Motion for New Trial based on the denial of future general damages by the jury. (UMF 12.) The Court issued a conditional order granting a new trial on damages for future noneconomic loss unless Defendant Costco consented to add $30,000 to the Judgment as damages for future noneconomic loss. (UMF 14.) This brought the total recovery to $133, 785.83. (UMF 16.) There is no dispute as to the first element of legal malpractice, as the parties agree that there was an attorney-client relationship. While a number of instances of negligence are claimed in the First Amended Complaint, Plaintiff's opposition and her expert's declaration focus on just six: failure to advise or discuss settlement offers and demands with Plaintiff, failure to obtain many of Plaintiff's medical records or bills, associating in various law firms in and out, Plaintiff's file being in such disarray that other counsel sought by Plaintiff could not take the case, failure to designate an independent medical expert or an economist or accountant to testify as to "present value" of future care numbers, and associating in Mr. Carlson as trial attorney without Plaintiff's knowledge or consent when she understood that Defendant Murphy would be handling trial. The competing expert declarations offered by Defendants and Plaintiff raise triable issues of material fact as to negligent acts or omissions. However, as to causation and damages, Defendants' expert opines that "Plaintiff's complaints about the handling of her case did not result in any harm, quantifiable or otherwise" and that counsel's actions were "not a legal cause of any harm to Plaintiff". (Shapiro Declaration ¶ 18.) Plaintiff's expert offers no opinion on causation or damages, and merely states that "In view of the Judgment and Plaintiff's injuries and future damages, no reasonable person could conclude that Defendants were 'ultimately successful at trial.'" (Jacobson Declaration ¶ 8.) While Mr. Jacobson opines that Mr. Shapiro ignores that defendants failed to secure all available evidence, he does not offer an opinion on what the damages would be to Plaintiff caused by that

particular failure, or that Plaintiff suffered any damages at all. Plaintiff has offered no evidence as to damages suffered or linking such damages to acts or omissions by the Defendants. Though Plaintiff vaguely asserts that her medical records and bills were not obtained or presented to the jury, she offers no evidence as to the contents of those records, amounts represented in those bills, or any indication that those documents would have augmented the award from the jury. As such, Plaintiff has failed to raise a triable issue of material fact as to causation and damages. The motion is therefore **GRANTED**.

The Motion for Summary Judgment/Adjudication filed by Defendant Lloyd Thomas Murphy on 3/14/23 (amended on 3/23/23 to include Defendant Law Offices of Murphy & Eftekhari as a moving Defendant) is **GRANTED**.

Though the two sets of Defendants filed separate motions and played separate roles in the representation of Plaintiff, the expert declarations are identical and the arguments overlap. As Plaintiff filed a single set of objections to the declarations aimed at both motions, the ruling on those objections stands. As to Defendants' objections, they largely mirror those in the motion above. Again, objections to Plaintiff's declaration, as ¶¶ 2, 5-8, 13-15, and 19 are **SUSTAINED** as above. The objections to the Jacobson declaration are **SUSTAINED** as to ¶¶ 7b, 7f, and 9.

It is undisputed that Plaintiff first retained Defendants The Lawyers Group, Inc. and Lawrence Levy to represent her in July 2014. (Undisputed Material Facts of Defendants Law Offices of Murphy Eftekhari and Lloyd Thomas Murphy ("UMF") 1.) The Moving Defendants did not become counsel of record until July 6, 2017. (UMF 2.) The parties agree that the trial was conducted by Mr. Carlson.

As above, a number of instances of negligence are claimed in the First Amended Complaint, Plaintiff's opposition and her expert's declaration focus on just six: failure to advise or discuss settlement offers and demands with Plaintiff, failure to obtain many of Plaintiff's medical records or bills, associating in various law firms in and out, Plaintiff's file being in such disarray that other counsel sought by Plaintiff could not take the case, failure to designate an independent medical expert or an economist or accountant to testify as to "present value" of future care numbers, and associating in Mr. Carlson as trial attorney without Plaintiff's knowledge or consent when she understood that Defendant Murphy would be handling trial. As the expert declarations for both this motion and the motion above are identical, there is again

		a triable issue of material fact as to whether there were negligent acts or omissions on the part of the moving Defendants. Likewise, as to causation and damages, Defendants' expert opines that "Plaintiff's complaints about the handling of her case did not result in any harm, quantifiable or otherwise" and that counsel's actions were "not a legal cause of any harm to Plaintiff". (Shapiro Declaration ¶ 18.) Plaintiff's expert offers no opinion on causation or damages, and merely states that "In view of the Judgment and Plaintiff's injuries and future damages, no reasonable person could conclude that Defendants were 'ultimately successful at trial.'" (Jacobson Declaration ¶ 8.) While Mr. Jacobson opines that Mr. Shapiro ignores that defendants failed to secure all available evidence, he does not offer an opinion on what the damages would be to Plaintiff caused by that particular failure, or that Plaintiff suffered any damages at all. Plaintiff has offered no evidence as to damages suffered or linking such damages to acts or omissions by the Defendants. Though Plaintiff vaguely asserts that her medical records and bills were not obtained or presented to the jury, she offers no evidence as to the contents of those records, amounts represented in those bills, or any indication that those documents would have augmented the award from the jury. Plaintiff asserts that her case was hurt by Mr. Carlson presenting the case rather than Mr. Murphy, however the only evidence offered to support that are inadmissible hearsay statements in her own declaration in support of this motion that are directly countered by the declaration of Mr. Carlson offered by Defendants. As such, Plaintiff has failed to raise a triable issue of material fact as to causation and damages. The motion is therefore **GRANTED.** *Moving counsel is to give notice of this ruling*.
12**.**	Tecaxco v. 2175 S. Mallul Dr., LLC 19-1069535	Attorneys Citron & Citron's ("Attorneys") Motion to Be Relieved as Counsel ("Motion") for defendants 2175 S Mallul Dr, LLC, JK Properties, Inc., and Legacy Partners, Inc. ("Defendants"), is **GRANTED**. Attorneys have complied with the requirements of California Rule of Court 3.1362 and have filed and served forms MC-051, MC-052, and MC-053 upon Defendants and all parties who have appeared in this action. Attorneys have indicated good cause for requesting relief. (*CA ST RPC Rule 1.16(b)(4); Thomas G. Ferruzzo, Inc. v. Superior Ct.* (1980) 104 Cal. App. 3d 501, 502-04 ("*Ferruzzo*"); *Est. of Falco* (1987) 188 Cal. App. 3d 1004, 1014.)

		Defendants' objections are not well taken and are not supported by any declaration or evidence. Attorneys received a continuance of the trial date, which would have provided Defendants at least 60-days from first notice of Attorneys' intent to seek relief to find new counsel. Defendants also have at least 39-days from the date of the hearing on this matter to find new counsel. Courts in this state have permitted the requested relief with less time prior to trial. (*Urethane Foam Experts, Inc. v. Latimer* (1995) 31 Cal. App. 4th 763 [25-days] ("*Urethane*").) Although corporate entity defendants cannot be self-represented and will need to find counsel, that alone is not enough to deny the present Motion. (*Ferruzzo, supra*, 104 Cal. App. 3d at 504.) The court does note the moving papers do not have the current trial date of 11/06/23. The court orders Attorneys to provide proper notice to Defendants of the new trial, and to notify Defendants of the consequences of failure to obtain new counsel as soon as possible. (*Urethane, supra*, 31 Cal. App. 4th 763.) *Attorneys to give notice.*
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